AUTHENTICATED U.S. GOVERNMENT INFORMATION GPO

THE NATIONAL ARCHIVES OF THE UNITED STATES
LITTERA SCRIPTA MANET
1934

FEDERAL REGISTER

VOLUME 18 NUMBER 194

Washington, Saturday, October 3, 1953

TITLE 7—AGRICULTURE

Chapter IX—Production and Marketing Administration (Marketing Agreements and Orders), Department of Agriculture

[Lemon Reg. 505]

PART 953—LEMONS GROWN IN CALIFORNIA AND ARIZONA

LIMITATION OF SHIPMENTS

§ 953.612 *Lemon Regulation 505*—(a) *Findings.* (1) Pursuant to the marketing agreement, as amended, and Order No. 53, as amended (7 CFR Part 953), regulating the handling of lemons grown in the State of California or in the State of Arizona, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and upon the basis of the recommendation and information submitted by the Lemon Administrative Committee, established under the said amended marketing agreement and order, and upon other available information, it is hereby found that the limitation of the quantity of such lemons which may be handled, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rule-making procedure, and postpone the effective date of this section until 30 days after publication thereof in the FEDERAL REGISTER (60 Stat. 237; 5 U. S. C. 1001 et seq.) because the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the act is insufficient, and a reasonable time is permitted, under the circumstances, for preparation for such effective time; and good cause exists for making the provisions of this section effective as hereinafter set forth. Shipments of lemons, grown in the State of California or in the State or Arizona, are currently subject to regulation pursuant to said amended marketing agreement and order; the recommendation and supporting information for regulation during the period specified herein was promptly submitted to the Department after an open meeting of the Lemon Administrative Committee on September 30, 1953, such meeting was held, after giving due notice thereof to consider recommendations for regulation, and interested persons were afforded an opportunity to submit their views at this meeting; the provisions of this section, including its effective time, are identical with the aforesaid recommendation of the committee, and information concerning such provisions and effective time has been disseminated among handlers of such lemons; it is necessary, in order to effectuate the declared policy of the act, to make this section effective during the period hereinafter specified; and compliance with this section will not require any special preparation on the part of persons subject thereto which cannot be completed by the effective time of this section.

(b) *Order.* (1) The quantity of lemons grown in the State of California or in the State of Arizona which may be handled during the period beginning at 12:01 a. m., P. s. t., October 4, 1953, and ending at 12:01 a. m., P. s. t., October 11, 1953, is hereby fixed as follows:

(i) District 1: Unlimited movement;

(ii) District 2: 225 carloads;

(iii) District 3: Unlimited movement.

(2) The prorate base of each handler who has made application therefor, as provided in the said amended marketing agreement and order, is hereby fixed in accordance with the prorate base schedule which is set forth below and made a part hereof by this reference.

(3) As used in this section, "handled," "handler," "carloads," "prorate base," "District 1," "District 2" and "District 3," shall have the same meaning as when used in the said amended marketing agreement and order.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. and Sup. 608c)

Done at Washington, D. C. this 1st day of October 1953.

[SEAL] FLOYD F. HEDLUND,
Acting Director, Fruit and Vegetable Branch, Production and Marketing Administration.

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FEDERAL REGISTER

Published daily, except Sundays, Mondays, and days following official Federal holidays, by the Federal Register Division, National Archives and Records Service, General Services Administration, pursuant to the authority contained in the Federal Register Act, approved July 26, 1935 (49 Stat. 500, as amended; 44 U. S. C., ch. 8B), under regulations prescribed by the Administrative Committee of the Federal Register, approved by the President. Distribution is made only by the Superintendent of Documents, Government Printing Office, Washington 25, D. C.

The regulatory material appearing herein is keyed to the Code of Federal Regulations, which is published, under 50 titles, pursuant to section 11 of the Federal Register Act, as amended June 19, 1937.

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CFR SUPPLEMENTS

(For use during 1953)

The following Supplement is now available:

Title 14: Parts 1–399 (Revised Book) ($6.00)

Previously announced: Title 3 ($175); Titles 4–5 ($0.55); Title 6 ($1.50); Title 7: Parts 1–209 ($1.75), Parts 210–899 ($2.25), Part 900–end (Revised Book) ($6.00); Title 8 (Revised Book) ($1.75); Title 9 ($0.40); Titles 10–13 ($0.40); Title 14: Part 400–end (Revised Book) ($3.75); Title 15 ($0.75); Title 16 ($0.65); Title 17 ($0.35); Title 18 ($0.35); Title 19 ($0.45); Title 20 ($0.60); Title 21 ($1.25); Titles 22–23 ($0.65); Title 24 ($0.65); Title 25 ($0.40); Title 26: Parts 80–169 ($0.40), Parts 170–182 ($0.65), Parts 183–299 ($1.75); Title 26: Part 300–end, Title 27 ($0.60); Titles 28–29 ($1.00); Titles 30–31 ($0.65); Title 32: Parts 1–699 ($0.75), Part 700–end ($0.75); Title 33 ($0.70); Titles 35–37 ($0.55); Title 38 ($1.50); Title 39 ($1.00); Titles 40–42 ($0.45); Title 43 ($1.50); Titles 44–45 ($0.60); Title 46: Parts 1–145 (Revised Book) ($5.00), Part 146–end ($2.00); Titles 47–48 ($2.00); Title 49: Parts 1–70 ($0.50), Parts 71–90 ($0.45), Parts 91–164 ($0.40), Part 165–end ($0.55); Title 50 ($0.45)

Order from
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PRORATE BASE SCHEDULE

DISTRICT NO. 2

[Storage date: Sept. 27, 1953]

[12:01 a. m. Oct. 4, 1953, to 12:01 a. m. Oct. 18, 1953]

Handler	*Prorate base (Percent)*
Total	100.000
American Fruit Growers, Inc., Corona	.034
American Fruit Growers, Inc., Fullerton	.328
American Fruit Growers, Inc., Upland	.097
Consolidated Lemon Co	.715
Ventura Coastal Lemon Co	1.507
Ventura Pacific Co	3.400
Chula Vista Mutual Lemon Association	.511
Index Mutual Association	.154
La Verne Cooperative Citrus Association	2.126
Ventura County Orange & Lemon Association	3.420
Glendora Lemon Growers Association	1.028
La Verne Lemon Association	.444
La Habra Citrus Association	.481
Yorba Linda Citrus Association	.557
Escondido Lemon Association	2.223
Cucamonga Mesa Growers	.446
Etiwanda Citrus Fruit Association	.190
San Dimas Lemon Association	.791
Upland Lemon Growers Association	3.124
Central Lemon Association	.728
Irvine Citrus Association, The	.743
Placentia Mutual Orange Association	.428
Corona Citrus Association	.134
Corona Foothill Lemon Co	1.189
Jameson Co	.637
Arlington Heights Citrus Co	.254
College Heights Orange & Lemon Association	3.345
Chula Vista Citrus Association, The	1.014
Escondido Cooperative Citrus Association	.152
Fallbrook Citrus Association	1.082
Lemon Grove Association	.154
Carpinteria Lemon Association	3.462
Carpinteria Mutual Citrus Association	3.753

PRORATE BASE SCHEDULE—Continued

DISTRICT NO. 2—continued

Handler	Prorate base (percent)
Goleta Lemon Association	6.553
Johnston Fruit Co	7.835
North Whittier Heights Citrus Association	.245
San Fernando Heights Lemon Association	.188
Sierra Madre-Lamanda Citrus Association	.143

PRORATE BASE SCHEDULE—Continued

DISTRICT NO. 2—continued

Handler	Prorate base (percent)
Briggs Lemon Association	3.288
Culbertson Lemon Association	1.456
Fillmore Lemon Association	.617
Oxnard Citrus Association	5.842
Rancho Sespe	.667
Santa Clara Lemon Association	5.368
Santa Paula Citrus Fruit Association	4.076

PRORATE BASE SCHEDULE—Continued

DISTRICT NO. 2—continued

Handler	Prorate base (percent)
Saticoy Lemon Association	5.987
Seaboard Lemon Association	5.700
Somis Lemon Association	4.752
Ventura Citrus Association	1.809
Ventura County Citrus Association	.529
Limoneira Co	3.791
Teague-McKevett Association	1.046
East Whittier Citrus Association	.123

PRORATE BASE SCHEDULE—Continued

DISTRICT NO. 2—continued

Handler	Prorate base (percent)
Murphy Ranch Co	0.864
Dunning, Vera Hueck	.000
Far West Produce Distributors	.025
Huarte, Joseph D	.000
Paramount Citrus Association, Inc	.334
Santa Rosa Lemon Co	.111

[F. R. Doc. 53-8523; Filed, Oct. 2, 1953; 9:00 a. m.]

TITLE 14—CIVIL AVIATION

Chapter II—Civil Aeronautics Administration, Department of Commerce

[Amdt. 39]

PART 609—STANDARD INSTRUMENT APPROACH PROCEDURES

ALTERATIONS

The standard instrument approach procedure alterations appearing hereinafter are adopted to become effective when indicated in order to promote safety of the flying public. Compliance with the notice, procedures, and effective date provisions of section 4 of the Administrative Procedure Act would be impracticable and contrary to the public interest, and therefore is not required.

Part 609 is amended as follows:

1. The low frequency range procedures prescribed in § 609.6 are amended to read in part:

LFR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, and courses are magnetic. Distances are in statute miles unless otherwise indicated. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation.

If an LFR instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure authorized by the Administrator for Civil Aeronautics for such airport. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below.

City and State; airport name, elevation; facility: class and identification; procedure No.; effective date	Initial approach to facility from—	Course and distance	Minimum altitude (ft.)	Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude over facility on final approach course (ft.)	Course and distance, facility to airport	Ceiling and visibility minimums			If visual contact not established at authorized landing minimums after passing facility within distance specified, of or landing not accomplished
							Condition	Type aircraft		
								75 m. p. h. or less	More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11
SPOKANE, WASH. Geiger Field, 2,372' SBRAZ-VDT-GEG Procedure No. 1 Sept. 23, 1953	Int. S crs. COE and E crs. GEG L/F ranges	254–30	7,400	East side south course: 180° outbound. 360° inbound 4,700' within 25 miles.	4,200	295–4.5	T–dn C–dn A–dn	300–1 900–1 1,000–2	300–1 900–1½ 1,000–2	Within 4.5 miles—execute climbing right turn, climb to 4,500' on north course, all turns on west side, within 25 miles of GEG LFR. Alternate missed approach—when directed by ATC, execute climbing left turn, climb to 4,000' on west course, all turns on south side within 25 miles of GEG LFR. CAUTION: Fairchild AFB 3½ miles west; radio tower 3,188' 6½ miles east of airport. 3,700' terrain east of LFR; 5,300' terrain 4 miles northeast of Rockford FM.
	Rockford FM	254–15	4,700							
	Pine City FM or Pine City "H" (Final)	360–24	4,200							
	GEG VOR	065–8	4,700							
	GEG LOM	064–8	4,700							
	Int. W crs. COE and N crs. GEG L/F ranges	150–7	4,700							
SPOKANE, WASH. Geiger Field, 2372' SBRAZ-VDT-GEG Procedure No. 2 Sept. 23, 1953	Int. S crs. COE and E crs. GEG LFR	254–30	7,400	No procedure turn or outbound course. 254° inbound.	4,700 after passing and receiving Rockford FM.	295–4.5	T–dn C–dn A–dn	300–1 900–1 1,000–2	300–1 1,200–1½ 1,000–2	Within 4.5 miles—Execute climbing right turn, climb to 4,500' on North course, all turns on West side, within 25 miles of GEG LFR. Alternate Missed Approach—When directed by ATC, execute climbing left turn, climb to 4,000' on West course, all turns on South side within 25 miles of GEG LFR. CAUTION: Fairchild AFB 3½ miles West; radio tower 3,188' 6½ miles East of airport. 3,700' terrain East of LFR. 5,300' terrain 4 miles Northeast o. Rockford FM.
	Rockford FM (Final)	254–15	4,700							

2. The automatic direction finding procedures prescribed in § 609.9 are amended to read in part:

ADF STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, and courses are magnetic. Distances are in statute miles unless otherwise indicated. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation.
If an ADF instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure authorized by the Administrator for Civil Aeronautics for such airport. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below.

City and State; airport name, elevation; facility: class and identification; procedure No.; effective date	Initial approach to facility from—	Course and distance	Minimum altitude (ft.)	Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude over facility on final approach course (ft.)	Course and distance, facility to airport	Ceiling and visibility minimums			If visual contact not established at authorized landing minimums after passing facility within distance specified, of if landing not accomplished.
							Condition	Type aircraft		
								75 m. p. h. or less	More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11
SPOKANE, WASH. Geiger Field, 2,372′ LOM-GE Procedure No. 1 Sept. 23, 1953	Rockford FM to GEG LFR	254–15	4,700	South side of course: 203° outbound. 023° inbound. 4,000′ within 15 miles of LOM, 20 and 25 miles NA.	3,560	023–4.4	T-dn C-d C-n S-dn2 A-dn	300–1 500–1 600–1 500–1 800–2	300–1 500–1½ 600–1½ 500–1 800–2	Within 4.4 miles—Execute climbing left turn, so as to intercept and climb to 4,500′ on the 360° outbound course from LOM within 15 miles, all turns on west side. Alternate missed approach—When directed by ATC, execute climbing left turn to intercept and climb on 300° outbound course from LOM, within 15 miles, all turns on west side; or execute climbing left turn, climb to 4,000′ proceeding direct to the LOM and hold on the east side of the 203° outbound-023° inbound course at 4,000′ within 15 miles of LOM.
	Pine City FM/H to GEG LFR	360–24	4,700							
	Harrington FM to Int. 203° bearing from LOM and 276° bearing from Pine City "H."	096–18	4,000							
	Int. 203° bearing from LOM and 276° bearing from Pine City "H" (final).	023–21	4,000							
	Pine City "H" to Int. 203° bearing from LOM and 330° bearing from Pine City "H."	330–19	4,100							
	Pine City FM/H	343–22	4,100							
	GEG VOR	045–6	4,000							
	GEG LFR	244–8	4,000							

3. The instrument landing system procedures prescribed in § 609.11 are amended to read in part:

ILS STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, and courses are magnetic. Distances are in statute miles unless otherwise indicated. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation.
If an ILS instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure authorized by the Administrator for Civil Aeronautics for such airport. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below:

City and State; airport name, elevation; Facility: Class and identification; procedure No.; effective date	Transition to ILS				Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude at glide slope interception inbound (ft.)	Altitude of glide slope and distance to approach end of runway at—		Ceiling and visibility minimums			If visual contact not established upon descent to authorized landing minimums or if landing not accomplished
	From—	To—	Course and distance	Minimum altitudes (ft.)			Outer marker	Middle marker	Condition	Type aircraft: 75 m. p. h. or less	Type aircraft: More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11	12	13
SPOKANE, WASH. Geiger Field, 2372′ ILS-GEG Procedure No. 1. Sept. 23, 1953	GEG VOR	LOM	045–.6	4,000	South side of southwest course: 203° outbound. 023° inbound. 4,000′ within 15 miles. 20 and 25 miles NA.	3,560′	3,560′	2,595′	T-dn	300–1	300–1	Climb to 4,500′ to intercept and climb on north course of GEG LFR, within 25 miles, all turns on west side; or execute climbing left turn to intercept and climb to 4,500′ on 360° outbound course from GEG VOR within 25 miles, all turns in west side. Alternate missed approach—when directed by ATC, execute climbing left turn, climb to 4,000′, on west course of LFR within 25 miles, allturns on S side; or execute climbing left turn to intercept and climb to 4,500′ on the 300° outbound course from GEG VOR within 25 miles, all turns on W side; or execute climbing left turn, climb to 4,000′ proceeding direct to LOM, hold on E side of SW ILS course within 15 miles at 4,000′. *After interception of glide slope at 4,000′, descent to cross the outer marker inbound at 3,560′ is authorized.
	GEG LFR	LOM	244–8	4,000					C-d	500–1	500–1½	
	Rockford FM	LOM	254–23	4,700					C-n	600–1	600–1½	
	Pine City FM/H	LOM	343–22	4,100					S-dn 2	400–¾	400–¾	
	Harrington FM to Int. S crs. ILS and 276° outbound bearing from Pine City H	----------	096–18	4,000					A-dn	800–2	802–2	
	Pine City "H" to Int. S crs. ILS and 330° outbound bearing from Pine City "H"	----------	330–19	4,100								
	Int. S crs. ILS and 276° bearing from Pine City "H" (final)	LOM	023–21	4,000*								

4. The very high frequency omnirange procedures prescribed in § 609.15 are amended to read in part:

VOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, and courses are magnetic. Distances are in statute miles unless otherwise indicated. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation.
If a VOR instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure authorized by the Administrator for Civil Aeronautics for such airport. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below.

City and State; airport name, elevation; facility: class and identification; procedure No.; effective date	Initial approach to facility from—	Course and distance	Minimum altitude (ft.)	Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances.	Minimum altitude over facility on final approach course (ft.)	Course and distance, facility to airport	Ceiling and visibility minimums			If visual contact not established at authorized landing minimums after passing facility within distance specified, or if landing not accomplished.
							Condition	Type aircraft		
								75 m. p. h. or less	More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11
SPOKANE, WASH. Geiger Field, 2,372′ BVOR GEG Procedure No. 1 Sept. 23, 1953	Rockford FM	252–24	4,700	South side of course:	3,700	026°–5.1	T-dn	300–1	300–1	Within 5.1 miles—execute climbing left turn to intercept and climb to 4,500′ on the 360° outbound course from GEG VOR, within 25 miles, all turns on west side.
	GEG LFR	245–8	4,000	206° outbound			C-d	500–1	500–1½	
	GEG LOM	225–6	4,000	026° inbound			C-n	600–1	600–1½	Alternate missed approaches—when directed by ATC, execute climbing left turn to intercept and climb to 4,500′ on the 300° outbound course from GEG VOR, within 25 miles, all turns on west side; or execute climbing left turn, climb to 4,000′, proceed direct to the GEG VOR and hold on the east side of the 206° outbound–026° inbound course at 4,000′ within 15 miles of GEG VOR.
	Pine City FM/H	339–22	4,100	4,000′ within 15 miles of GEG VOR.			S-dn 2	500–1	500–1	
	Harrington FM to Int. 206° crs. from GEG VOR and 279° crs. from Pine City "H"	099–18	4,000	20 and 25 miles NA.			A-dn	800–2	800–2	
	Pine City "H" to Int. 260° crs. from GEG VOR and 323° crs. from Pine City "H"	323–18	4,100							
	Int. of 206° crs. from GEG VOR and 279° crs. from Pine City "H" to GEG VOR (final)	026–20	4,000							

These procedures shall become effective upon publication in the FEDERAL REGISTER.

(Sec. 205, 52 Stat. 984, as amended; 49 U. S. C. 425. Interpret or apply sec. 601, 52 Stat. 1007, as amended; 49 U. S. C. 551)

[SEAL]

F. B. LEE, *Administrator of Civil Aeronautics.*

[F. R. Doc. 53–8425; Filed, Oct. 2, 1953; 8:45 a. m.]

TITLE 32—NATIONAL DEFENSE

Chapter V—Department of the Army

Subchapter E—Organized Reserves

PART 561—ARMY RESERVE

APPOINTMENT AS RESERVED COMMISSIONED OFFICERS OF THE ARMY FOR ASSIGNMENT TO WOMEN'S ARMY CORPS BRANCH

In § 561.19, paragraphs (a) (2), (d) (2) and (4) (ii) are revised as follows:

§ 561.19 *Appointment as Reserved Commissioned Officers of the Army for Assignment to Women's Army Corps Branch*—(a) *Grade.* * * *

(2) *For appointment and concurrent order to active duty.* Appointments may be made in the grades of second lieutenant and first lieutenant for qualified applicants whose services are desired for active duty to meet basic branch (WAC) requirements.

* * * * *

(d) *Special requirements for appointment.* * * *

(2) Applicant must have the minimum years of qualifying college education and/or experience and must not have attained the anniversary of birth shown for grades indicated:

Grade	Age	Qualifying college education and/or years of experience
Second lieutenant	28	4
First lieutenant	34	7

* * * * *

(4) Applicants must meet these additional requirements:

* * * * *

(ii) For appointment and concurrent active duty in grade of first lieutenant, the applicant must have a background of experience in teaching business, recreation, personnel administration, advertising or other fields requiring leadership and supervision of personnel.

* * * * *

[C1, SR 140–105–7, September 21, 1953] (66 Stat. 481)

[SEAL] WM. E. BERGIN,
Major General, U. S. Army,
The Adjutant General.

[F. R. Doc. 53–8485; Filed, Oct. 2, 1953; 8:46 a. m.]

Chapter XIV—The Renegotiation Board

Subchapter B—Renegotiation Board Regulations Under the 1951 Act

PART 1453—MANDATORY EXEMPTIONS FROM RENEGOTIATION

NONDEFENSE CONTRACTS

Section 1453.5 (b) of this subchapter is amended by deleting the period at the end of subparagraph (7) and inserting in lieu thereof the following: "; and all contracts of the Civil Aeronautics Administration, Department of Commerce, except those entered into at the request of the Department of Defense, Department of the Army, Department of the Navy, or Department of the Air Force."

(Sec. 109, 65 Stat. 22; 50 U. S. C. App. Sup. 1219)

Dated: September 30, 1953.

NATHAN BASS,
Secretary.

[F. R. Doc. 53-8486; Filed, Oct. 2, 1953; 8:46 a. m.]

PART 1473—CLEARANCE PROCEDURE

NOTIFICATION OF DETERMINATION BY REGIONAL BOARD

Section 1473.2 *Determination by Regional Board* of this subchapter is amended by deleting the second sentence of paragraph (a) thereof.

(Sec. 109, 65 Stat. 22; 50 U. S. C. App. Sup. 1219)

Dated: September 30, 1953.

NATHAN BASS,
Secretary.

[F. R. Doc. 53-8487; Filed, Oct. 2, 1953; 8:46 a. m.]

TITLE 26—INTERNAL REVENUE

Chapter I—Internal Revenue Service, Department of the Treasury

Subchapter A—Income and Excess Profits Taxes

[Regulations 118]

PART 39—INCOME TAX: TAXABLE YEARS BEGINNING AFTER DECEMBER 31, 1951

Correction

In F. R. Doc. 53-8286, appearing as Part II of the issue for Saturday, September 26, 1953, the following corrections should be made:

1. On page 5901, in the third sentence of § 39.58 (b)-1 (a) (1), the word "or" should be inserted between "form" and "issued".

2. On page 6107, the second sentence in the second column should read: "The amount the time for payment of which might properly have been extended is the net amount to which the extension relates which is satisfied by applying or crediting thereto a decrease in tax determined in respect of an application for a tentative carry-back adjustment under section 3780."

TITLE 32A—NATIONAL DEFENSE, APPENDIX

Chapter VI—Business and Defense Services Administration, Department of Commerce

[BDSA Reg. 1 of Oct. 1, 1953]

BDSA REG. 1—RATIFICATION OF PREVIOUS ACTIONS

This regulation is found necessary and appropriate to promote the national defense and is issued pursuant to the Defense Production Act of 1950, as amended. In the formulation of this regulation, consultation with industry representatives has been rendered impracticable because the regulation affects many different industries.

Sec.

1. What this regulation does.
2. Existing regulations, orders, and other actions of the National Production Authority.
3. Use of National Production Authority forms.

AUTHORITY: Sections 1 to 3 issued under sec. 704, 64 Stat. 816, Pub. Law 95, 83d Cong.; 50 U. S. C. App. Sup. 2154. Interpret or apply secs. 101 and 102, 64 Stat. 799, Pub. Law 95, 83d Cong.; 50 U. S. C. App. Sup. 2071, 2072; E. O. 10480, Aug. 14, 1953, 18 F. R. 4939.

SECTION 1. *What this regulation does.* The purpose of this regulation is to furnish continuity in the defense mobilization activities of the Business and Defense Services Administration, which will exercise certain functions formerly handled by the National Production Authority. To accomplish a smooth transition, it provides that outstanding actions of the National Production Authority are ratified and deemed actions of the Business and Defense Services Administration.

SEC. 2. *Existing regulations, orders, and other actions of the National Production Authority.* All regulations, M orders, delegations of authority to other Government agencies or officials thereof, designations, notices, and rules of practice shown in List A of this regulation, and all other actions (including directives), which were issued or taken by or under authority of the Administrator of the National Production Authority and which were in existence at the close of business September 30, 1953, are hereby adopted, ratified, and confirmed by the Administrator of the Business and Defense Services Administration, and shall remain in full force and effect until they expire by their terms or are revoked or amended. Any references in such actions to the Administrator of the National Production Authority or to the National Production Authority shall be deemed references to the Administrator of the Business and Defense Services Administration or to the Business and Defense Services Administration, as the case may be.

SEC. 3. *Use of National Production Authority forms.* Pending the preparation and adoption of revised forms, and until otherwise ordered or prescribed, forms of the National Production Authority shall be deemed forms of the Business and Defense Services Administration.

This regulation shall take effect October 1, 1953.

BUSINESS AND DEFENSE SERVICES ADMINISTRATION,
H. B. MCCOY,
Acting Administrator.

LIST A OF BDSA REG. 1

EXISTING NPA ACTIONS

REGULATIONS

DMS Reg. 1 (March 23, 1953)—Basic Rules of the Defense Materials System:
Amdt. 1 (August 27, 1953) to DMS Reg. 1.
Dir. 1 (as amended June 29, 1953) to DMS Reg. 1.
Dir. 2 (May 11, 1953) to DMS Reg. 1.
Dir. 3 (June 12, 1953) to DMS Reg. 1.
Dir. 4 (August 27, 1953) to DMS Reg. 1.

DMS Reg. 2 (March 23, 1953)—Construction Under the Defense Materials System:
Amdt. 1 (August 27, 1953) to DMS Reg. 2.
Dir. 1 (as amended June 29, 1953) to DMS Reg. 2.
Dir. 2 (June 15, 1953) to DMS Reg. 2.
Dir. 3 (August 27, 1953) to DMS Reg. 2.

Reg. 2 (as amended March 23, 1953)—Basic Rules of the Priorities System:
Dir. 4 (as amended April 30, 1952) to Reg. 2.
Dir. 6 (March 23, 1953) to Reg. 2.

Reg. 3 (as amended March 23, 1953)—Operations of the Priorities and Allocations Systems Between Canada and the United States.

Reg. 5 (as amended October 11, 1951)—Appeals.

Reg. 6 (November 5, 1951)—Transfer of Quotas and Ratings; Transfer of a Business as a Going Concern.

Reg. 7 (April 23, 1952)—Interpretations of NPA Regulations and Orders.

ORDERS

M-1A (May 14, 1953)—Iron and Steel:
Amdt. 1 (June 26, 1953) to M-1A.
Amdt. 2 (July 31, 1953) to M-1A.

M-5A (May 6, 1953)—Aluminum:
Dir. 1 (May 6, 1953) to M-5A.

M-11A (May 6, 1953)—Copper and Copper-Base Alloys:
Amdt. 1 (June 26, 1953) to M-11A.
Amdt. 2 (August 25, 1953) to M-11A.

M-17 (as amended June 12, 1953)—Components or Parts.

M-41 (as amended February 27, 1953)—Metalworking Machines—Delivery.

M-43A (May 6, 1953)—Construction Machinery: Distribution.

M-80 (as amended June 15, 1953)—Iron and Steel—Alloying Materials and Alloy Products:
Amdt. 1 (June 30, 1953) to M-80.
Sched. 1 (as amended June 30, 1953) to M-80.
Sched. 5 (as amended June 30, 1953) to M-80.
Sched. A (as amended April 24, 1953) to M-80.
Amdt. 1 (June 12, 1953) to Sched. A to M-80.
Sched. C (as amended July 23, 1952) to M-80.

DELEGATIONS

Del. 1 (as amended April 7, 1952)—Secretary of Defense.
Supp. 1 (as amended October 23, 1952) to Del. 1.
Supp. 2 (October 3, 1951) to Del. 1.

Del. 2 (as amended July 27, 1951)—Atomic Energy Commission.
Supp. 1 (October 3, 1951) to Del. 2.

Del. 5 (as amended December 2, 1952)—Defense Materials Procurement Administrator.

Del. 6 (as amended August 21, 1951)—Civil Aeronautics Administration.

Del. 8 (February 12, 1951)—Secretary of State.

Del. 9 (February 26, 1951)—Secretary of the Interior.

Del. 10 (April 26, 1951)—Administrator of the Production and Marketing Administration.

Del. 12 (June 26, 1951)—Office of International Trade.

DESIGNATION

DSM-1 (as amended June 18, 1953)—Designation of Scarce Materials and Withdrawal of Previous Designation.

NOTICE

Notice 2 (September 1, 1951)—Signature of Official NPA Actions.

RULES

RP 1 (revised March 17, 1953)—Rules of Practice Before Hearing Commissioners.

[F. R. Doc. 53-8548; Filed, Oct. 2, 1953; 12:10 p. m.]

TITLE 31—MONEY AND FINANCE: TREASURY

Chapter I—Monetary Offices, Department of the Treasury

[1953 Dept. Circular 1]

PART 129—VALUES OF FOREIGN MONEYS

QUARTER BEGINNING OCTOBER 1, 1953

OCTOBER 1, 1953.

§ 129.16 *Calendar year, 1953.* * * *

(d) *Quarter beginning October 1, 1953.* Pursuant to section 522, Title IV, of the Tariff Act of 1930, reenacting section 25 of the act of August 27, 1894, as amended, the following estimates by the Director of the Mint of the values of foreign monetary units are hereby proclaimed to be the values of such units in terms of the money of account of the United States that are to be followed in estimating the value of all foreign merchandise exported to the United States during the quarter beginning October 1, 1953, expressed in any such foreign monetary units: *Provided, however,* That if no such value has been proclaimed, or if the value so proclaimed varies by 5 per centum or more from a value measured by the buying rate in the New York market at noon on the day of exportation, conversion shall be made at a value measured by such buying rate as determined and certified by the Federal Reserve Bank of New York and published by the Secretary of the Treasury pursuant to the provisions of section 522, Title IV, of the Tariff Act of 1930.

[The value of foreign monetary units, as shown below in terms of United States money, is the ratio between the legal gold content of the foreign unit and the legal gold content of the United States dollar. It should be noted that this value, with respect to most countries, varies widely from the present exchange rates. Countries not having a legally defined gold monetary unit, or those for which current information is not available, are omitted]

Country	Monetary unit	Value in terms of U. S. money	Remarks
Colombia	Peso	$0.5128	Monetary Law No. 90 of Dec. 16, 1948, effective Dec. 18, 1948, content of peso 0.50637 gram of gold 9/10 fine. Obligation to sell gold suspended Sept. 24, 1931.
Costa Rica	Colon	.1781	Parity of 0.158267 fine gram gold established by decree law effective Mar. 22, 1947.
Denmark	Krone	.4537	Conversion of notes into gold suspended Sept. 29, 1931.
Dominican Republic.	Peso	1.0000	By monetary Law No. 1528 effective Oct. 9, 1947, gold content of peso equal to 0.888671 gram fine.
Ethiopia	Dollar	.4025	New unit established by Proclamation of the Emperor on May 25, 1945, effective July 23, 1945.
Finland	Markka	.0426	Conversion of notes into gold suspended Oct. 12, 1931.
Guatemala	Quetzal	1.0000	Decree No. 203 of Dec. 10, 1945, defined the monetary unit as 15 5/21 grains gold 9/10 fine. Conversion of notes into gold suspended Mar. 6, 1933.
Haiti	Gourde	.2000	National bank notes redeemable on demand in U. S. dollars.
Hungary	Forint	.0852	New unit based on 13,210 forint per kilogram fine gold, effective July 1946.
Peru	Sol	.4740	Conversion of notes into gold suspended May 18, 1932; exchange control established Jan. 23, 1945.
Philippines	Peso	.5000	International value according to the Central Bank Act approved June 15, 1948. Exchange control established.
Sweden	Krona	.4537	Conversion of notes into gold suspended Sept. 29, 1931.
Union of Soviet Socialist Republics.	Ruble	.2500	By decree of Council of Ministers ruble equal to 0.222168 fine gram gold effective Mar. 1, 1950.
Uruguay	Peso	.6583	Present gold content of 0.585018 grams fine established by law of Jan. 18, 1938. Conversion of notes into gold suspended Aug. 2, 1914; exchange control established Sept. 7, 1931.
Venezuela	Bolivar	.3267	Exchange control established Dec. 12, 1936.

(Sec. 522, 46 Stat. 739; 31 U. S. C. 372)

[SEAL]

H. CHAPMAN ROSE,
Acting Secretary of the Treasury.

[F. R. Doc. 53-8490; Filed, Oct. 2, 1953; 8:47 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE TREASURY

Internal Revenue Service

[27 CFR Part 6]

INDUCEMENTS FURNISHED TO RETAILERS

NOTICE OF HEARING ON PROPOSED AMENDMENTS

SEPTEMBER 25, 1953.

Notice is hereby given, pursuant to the provisions of section 5 of the Federal Alcohol Administration Act (49 Stat. 981 as amended; 27 U. S. C. 205), of a public hearing to be held on October 14, 1953, at 10 a. m., at Room 1630, Department of Justice Building, Washington, D. C., at which time and place all interested parties will be afforded opportunity to be heard, in person or by authorized representative, with reference to the proposals, the substance of which is stated below, to amend Regulations No. 6 (27 CFR Part 6), relating to inducements furnished to retailers.

Written data, views or arguments relevant and material to the proposals may be submitted in duplicate for consideration (1) by mailing the same addressed to the Director, Alcohol and Tobacco Tax Division, Internal Revenue Service, Washington 25, D. C., provided that they are received prior to the termination of the hearing, or (2) by presenting the same at the said hearing.

SUBSTANCE OF PROPOSALS

1. To amend § 6.23 to make it applicable only to products other than distilled spirits.

And

To add a new § 6.23a applicable to distilled spirits only, similar to the present § 6.23, except that (1) it would include "clocks, calendars, thermometers and the like", in the definition of signs, etc.; (2) it would raise the monetary limitation to a specified amount not greater than $20.00 and make it applicable only to the cost of materials furnished with no limitation on the cost of installation; and (3) it would place window displays and interior displays in separate categories, with a limitation of a specified amount not exceeding $20.00 for each industry member, in the case of window displays; and a limitation of a specified amount not exceeding $20.00 per brand advertised, in the case of interior displays.

Or

2. To amend § 6.23 to make it applicable only to products other than distilled spirits.

And

To add a new § 6.23a applicable to distilled spirits only, similar to the present § 6.23, except that (1) it would place one of the following limitations on the cost of materials furnished: (a) A flat monetary limitation of a specified amount not greater than $20.00; or (b) a flat monetary limitation of a specified amount not greater than $20.00 in the case of displays of a temporary nature, and a limitation of $100.00 in the case of displays which will be reused to such an extent that the pro-rated value of such displays would not exceed a specified amount not greater than $20.00; and would place one of the following limitations on the cost of installation: (a) A flat monetary limitation of a specified amount not greater than $20.00; or (b) a limitation based on half-hour units of time spent in installing the display material, at the prevailing cost per unit in the locality where installed (not to exceed 4 units); or (c) a limitation based on units of size; or (d) a limitation based on the amount of merchandise displayed; or (e) a limitation based on any combination of the above limitations.

Or

3. To amend § 6.23 to make it applicable only to products other than distilled spirits.

And

To add a new § 6.23a applicable to distilled spirits only, similar to the present § 6.23, except that it would increase the present $10.00 limitation to a specified amount not greater than $30.00, e. g. $25.00.

Or

4. To amend § 6.23 to make it applicable only to products other than distilled spirits.

And

To add a new § 6.23a applicable to distilled spirits only, which would permit any and all signs, posters, placards, de-

signs, devices, decorations, or graphic displays, bearing advertising matter and for use inside a retail establishment, to be furnished, given, rented, loaned or sold to a retailer irrespective of the value of such materials or the cost of installation thereof.

Or

5. To amend § 6.23 by adopting any combination of Proposals 1 through 4.

6. To amend § 6.28 to make it applicable only to products other than distilled spirits.

And

To add a new § 6.28a applicable to distilled spirits only, similar to the present § 6.28, except that (1) "clocks, calendars, thermometers, foam scrapers, tap markers, and beer mats" would be eliminated, and "mats" added; and (2) the present monetary limitation of $10.00 would be applicable to each brand advertised by an industry member in any one retail establishment.

Or

7. To amend § 6.28 to make it applicable only to products other than distilled spirits.

And

To add a new § 6.28a applicable to distilled spirits only, similar to the present § 6.28, except that it would increase the present $10.00 limitation to a specified amount not greater than $30.00, e. g. $25.00.

Or

8. To amend § 6.28 by adopting any combination of Proposals 6 and 7.

9. To amend § 6.29 to permit the furnishing as a sample one bottle of wine of the customary size for that particular wine, but in no case to exceed a certain maximum size, e. g. one gallon.

[SEAL] DWIGHT E. AVIS,
Director, Alcohol and Tobacco Tax Division, Internal Revenue Service.

[F. R. Doc. 53-8489; Filed, Oct. 2, 1953; 8:47 a. m.]

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[7 CFR Part 905]

[Docket No. AO 209-A5]

MILK IN THE OKLAHOMA CITY, OKLAHOMA, MARKETING AREA

PROPOSED AMENDMENTS TO TENTATIVE MARKETING AGREEMENT AND TO ORDER REGULATING HANDLING

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), notice is hereby given of a public hearing to be held in the Crystal Hall, Huckins Hotel, 20 W. Broadway, Oklahoma City, Oklahoma, beginning at 10:00 a. m., c. s. t., October 19, 1953, for the purpose of receiving evidence with respect to proposed amendments hereinafter set forth, or appropriate modification thereof, to the tentative marketing agreement heretofore approved by the Secretary of Agriculture and to the order, regulating the handling of milk in the Oklahoma City, Oklahoma, marketing area. These proposed amendments have not received the approval of the Secretary of Agriculture.

Amendments to the order regulating the handling of milk in the Oklahoma City, Oklahoma, marketing area were proposed as enumerated below:

Proposed by Central Oklahoma Milk Producers Association:

1. Delete paragraphs (d), (e), and (f) of § 905.44 and substitute therefor the following:

(d) As Class I milk if transferred in the form of cream under Grade A certification to an unapproved plant, unless the handler claims classification as Class II milk and establishes the facts that such cream was transferred without Grade A certification and with each container labeled or tagged to indicate that the contents are an ungraded product suitable for manufacturing use only, and that the shipment was so invoiced;

(e) As Class I milk if transferred or diverted in the form of bulk milk or bulk skim milk to an unapproved plant located not more than 200 miles from the approved plant unless the following conditions are met:

(1) The handler claims classification as Class II milk on the basis of utilization mutually indicated in writing to the market administrator by the handler and the operator of the unapproved plant on or before the 7th day after the end of the month within which such transfer occurred; and

(2) The operator of the unapproved plant maintains books and records showing the receipts and utilization of all skim milk and butterfat at such plant which are made available if requested by the market administrator for the purpose of verification.

(3) If the conditions set forth in subparagraphs (1) and (2) of this paragraph are met, the classification reported by the handler shall be subject to verification by the market administrator as follows:

(i) Determine the use of all skim milk and butterfat at such unapproved plant and,

(ii) Allocate the skim milk and butterfat so transferred or diverted to the highest use classification remaining after subtracting, in series beginning with Class I milk, the skim milk and butterfat in milk received at the unapproved plant from dairy farmers who the market administrator determines constitute the regular source of supply for fluid usage of such unapproved plant in markets supplied by it.

2. In § 905.51 (a) (2) change the tabulated schedule of standard utilization percentages to read as follows;

Month for which price applies	Months used in computation	Standard utilization (percentage)
January	November-December	123
February	December-January	124
March	January-February	125
April	February-March	131
May	March-April	137
June	April-May	144
July	May-June	146
August	June-July	144
September	July-August	138
October	August-September	127
November	September-October	117
December	October-November	117

3. Delete § 905.51 (a) (3) and insert in lieu thereof the following:

(3) For each minus or plus point in excess of 10 in the "net utilization percentage" determine the amount of supply-demand adjustment from the following schedule:

Deviation percentage points	Supply-demand adjustment for specified months is—		
	April through June	September through December	All other months
	Cents	*Cents*	*Cents*
+13 or over	−30	−30	−30
+10 or +11	−25	−25	−20
+7 or +8	−18	−10	−13
+4 or +5	−12	−5	−8
+1 or +2	−5	−2	−3
−1 or −2	+2	+5	+3
−4 or −5	+5	+12	+8
−7 or −8	+10	+18	+13
−10 or −11	+25	+25	+20
−13 or over	+30	+30	+30

When the deviation percentage does not fall within the tabulated brackets the adjustment should be determined by the adjacent bracket which is the same as or nearest to the bracket used in the previous month.

4. Delete § 905.80 (b) and insert in lieu thereof the following:

(b) On or before the last day of each month to each producer who has not discontinued delivery of milk to such handler for milk received from him during the first 15 days of the month at not less than the Class II price for the preceding month without deduction for hauling: *Provided*, That with respect to producers whose milk was caused to be delivered to such handler by a cooperative association which is authorized to collect payments for such milk, the handler shall, if the cooperative association so requests, pay such cooperative association at least 3 days before the end of the month, an amount equal to the sum of the individual payments otherwise payable to such producers in accordance with this paragraph.

Proposed by Beatrice Foods Co., Borden Co., Central Dairy Products Co., DeCoursey Milk Co., Gilt Edge Dairy, Hanson-Ashe Dairy, Johnson Dairy, Mendonca Dairy, Red Bud Dairy, and Townley's Dairy:

5. Amend § 905.10 by deleting all of the first sentence thereof down to the word *"Provided"* and substituting the following wording:

§ 905.10 *Producer.* "Producer" means any person other than a producer-handler who produces milk, all of which is first received at an approved plant. To

qualify under this definition a producer must file with the Market Administrator a sworn statement that he is not and will not engage in the practice or business of selling or offering for sale any product defined as Class I product under this order. Each producer as herein defined must renew and refile such sworn statement before the last day of February in each succeeding calendar year.

The remainder of said section to be as presently set forth.

6. Amend § 905.12 by adding the following language: *"Provided,* That during the months of October, November, December and January other source milk shall be exclusive of any milk entering the market under an emergency health department permit: *Further provided, however,* That for the purpose of allocating Class I sales to producer milk, the amount of emergency milk to be excluded from the definition of other source milk shall be limited to an amount equal to the difference between the total Class I sales of the importing plant and 115 percent of producer receipts of such plant during any 30 day accounting period."

7. Amend § 905.13 by deleting the entire section and substituting the following new section:

§ 905.13 *Producer-handler.* "Producer-handler" means any person who processes milk produced by him but receives no milk from other producers.

8. Amend § 905.41 (a) by inserting a period after the words "hermetically sealed cans" of subparagraph (2) thereof and deleting the remainder of the subparagraph.

9. Amend § 905.41 (b) by changing subparagraph (3) thereof to read: "(3) in shrinkage up to 5 percent of receipts from producers during the months of February, March, April, May, and June and 2 percent in the remaining months,".

And further amend said paragraph by adding subparagraph (6) to read as follows: "(6) any milk after call made to the Market Administrator which is disposed of by any other method than by sale of the same in any product."

10. Amend § 905.46 (a) (3) by deleting the wording following the words "Class II" and inserting in place thereof the following: "the pounds of skim milk in other source milk excluding emergency milk."

Amend § 905.46 (a) (4) by substituting a new subparagraph therefor reading as follows:

(4) Subtract from the remaining pounds of skim milk in each class, in series beginning with Class II, the pounds of skim milk in emergency milk.

12. Further amend § 905.46 (a) by adding a new subparagraph (5) reading as follows:

(5) Subtract from the remaining pounds of milk in each class, in series beginning with Class II, the pounds of skim milk received from a producer-handler as defined in § 905.13.

13. Further amend § 905.46 (a) by renumbering the existing subparagraphs (4), (5) and (6) as subparagraphs (6), (7) and (8).

14. Amend § 905.50 by deleting the entire section and substituting therefor a new section reading as follows:

§ 905.50 *Basic price to be used in determining Class I prices.* The basic price per hundredweight of Class I milk shall be the Class II price during the preceding month.

15. Amend § 905.51 (a) by changing the figure $1.70 to $1.45 (during the months of April, May and June) and the figure $1.90 to $1.65 (during all other months). The remainder of said paragraph to be unchanged.

16. Amend § 905.51 (b) by changing the plants whose price is used in determining the average to more realistically reflect the local demand and sale of excess milk.

17. Amend § 905.72 by deleting the words "April through June" and substituting therefor the words "February through June".

Proposed by Dairy Branch, Production and Marketing Administration:

18. In § 905.22 (j) (1) change the date of announcement of the Class I price from the 10th to the 12th day of the month.

19. Provide more precisely for the classification and allocation of skim milk and butterfat in inventory and for the reclassification of skim milk and butterfat classified as Class II milk (whether in inventory or otherwise) and later used as Class I milk.

20. Make such other changes as may be required to make the entire order conform with any amendment thereto which may result from this hearing.

Copies of this notice of hearing and of the order now in effect may be procured from the market administrator, 227 N. W. 23rd Street, Room 202, Oklahoma City 3, Oklahoma, or from the Hearing Clerk, Room 1353, South Building, United States Department of Agriculture, Washington 25, D. C., or may be there inspected.

Dated: September 29, 1953 at Washington, D. C.

[SEAL] GEORGE A. DICE,
Acting Assistant Administrator.

[F. R. Doc. 53-8495; Filed, Oct. 2, 1953; 8:48 a. m.]

[7 CFR Part 961]

[Docket No. AO-160-A-14-RO1]

MILK IN THE PHILADELPHIA, PENNSYLVANIA, MARKETING AREA

NOTICE OF EXTENSION OF TIME FOR FILING EXCEPTIONS TO RECOMMENDED DECISION WITH RESPECT TO PROPOSED AMENDMENT TO TENTATIVE MARKETING AGREEMENT, AND TO ORDER, AS AMENDED

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure governing the formulation of marketing agreements and orders (7 CFR Part 900), notice is hereby given that the time for filing exceptions to the recommended decision with respect to a proposed amendment to the tentative marketing agreement and to the order, as amended, regulating the handling of milk in the Philadelphia, Pennsylvania, marketing area, which was issued August 20, 1953 (18 F. R. 5101), is hereby extended to October 10, 1953.

Dated: September 30, 1953, at Washington, D. C.

[SEAL] GEORGE A. DICE,
Acting Assistant Administrator.

[F. R. Doc. 53-8494; Filed, Oct. 2, 1953; 8:47 a. m.]

NOTICES

DEPARTMENT OF COMMERCE

Business and Defense Services Administration

[BDSA Notice 2]

SIGNATURE OF OFFICIAL BDSA ACTIONS

This notice is issued under the authority of the Defense Production Act of 1950, as amended (Pub. Law 774, 81st Cong., Pub. Law 95, 83d Cong.), Executive Order 10480 (18 F. R. 4939), Defense Mobilization Order 30 (18 F. R. 5366), and Department of Commerce Order 152 dated October 1, 1953.

Sec.
1. Purpose of this notice.
2. Definitions.
3. Signature of official actions.
4. Effect on official actions taken prior to effective date of this notice.

SECTION 1. *Purpose of this notice.* This notice supersedes NPA Notice 2 dated September 1, 1951 (16 F. R. 8802), and prescribes the exclusive methods of signature to be used on official actions of the Business and Defense Services Administration. This notice does not apply to official actions of any other agency, or of any officer or employee thereof, even when such action is based on a regulation, order, or delegation of the Business and Defense Services Administration.

SEC. 2. *Definitions.* As used in this notice, "official action" means the issuance of any BDSA regulation or order and direction or supplement thereto, including any amendment, extension, or revocation thereof; and any action taken

by letter, telegram, form, directive, or otherwise, which assigns or denies a preference rating or grants or denies an authorization, allocation, allotment, adjustment, or exception, to a named person or persons, or requires or permits a named person or persons to take or not to take any action relating to production, delivery, receipt, use, sale, or distribution of any material or facility; and any action which changes or refuses to change the effect of any of the above actions. For the purpose of this notice, "official action" does not include any action taken in the course of an investigation or compliance proceeding; or the issuance of a suspension order or any action taken in the course of a proceeding looking toward the issuance of such an order.

SEC. 3. *Signature of official actions.* (a) The Administrator and the Deputy Administrator of the Business and Defense Services Administration may, in their respective names, perform the functions and exercise all the powers, authority, and discretion vested in the Administrator of the Business and Defense Services Administration.

(b) All official actions taken in performance of the functions or in the exercise of the powers, authority, and discretion vested in the Administrator of the Business and Defense Services Administration, which are not taken in the name of the Administrator, or in the name of the Deputy Administrator, shall be taken in the name of the Business and Defense Services Administration, countersigned or attested by the Assistant Deputy Administrator of the Business and Defense Services Administration. Unless otherwise ordered, all actions taken by counter-signature or attestation of the Assistant Deputy Administrator shall be in the following form:

BUSINESS AND DEFENSE SERVICES ADMINISTRATION

By ----------
(Assistant Deputy Administrator)

SEC. 4. *Effect on official actions taken prior to effective date of this notice.* Nothing contained herein shall impair or affect the validity of any official action taken prior to the effective date of this notice.

This notice shall take effect October 1, 1953.

BUSINESS AND DEFENSE SERVICES ADMINISTRATION,
H. B. MCCOY,
Acting Administrator.

[F. R. Doc. 53-8549; Filed, Oct. 2, 1953; 12:10 p. m.]

DEPARTMENT OF AGRICULTURE

Office of the Secretary

PUERTO RICO

SALE OF MINERAL INTERESTS; AREA DESIGNATION

Schedule A, entitled Fair Market Value Areas, accompanying the Secretary's order dated June 26, 1951 (16 F. R. 6318), is amended as follows:

In Schedule A, add Puerto Rico.

(Sec. 3, Pub. Law 760, 81st Cong.)

Done at Washington, D. C., this 30th day of September 1953.

[SEAL] TRUE D. MORSE,
Acting Secretary of Agriculture.

[F. R. Doc. 53-8504; Filed, Oct. 2, 1953; 8:59 a. m.]

Production and Marketing Administration

DIRECTOR OF THE MOBILIZATION ACTIVITIES BRANCH

DELEGATION OF AUTHORITY WITH RESPECT TO THE ADMINISTRATION OF IMPORT REGULATION 1, AS AMENDED

There is hereby delegated to the Director of the Mobilization Activities Branch, Production and Marketing Administration, all of the authority vested in the Administrator, Production and Marketing Administration, by Import Regulation 1, issued by the Secretary of Agriculture on June 30, 1953 (18 F. R. 3819, 3822), as from time to time amended, except

(a) The authority to revoke import licenses pursuant to § 6.28 of such regulations; and

(b) The authority to review, upon appeal, action taken by the Director on petitions for relief from hardship filed pursuant to § 6.29.

As used herein, "Director" means the Director of the Mobilization Activities Branch, Production and Marketing Administration, and any other officer or employee of the Administration authorized to act in his stead. All other terms shall have the same meaning as when used in Import Regulation 1, as from time to time amended.

The delegation of authority (18 F. R. 4103) dated July 9, 1953, to the Director of the Office of Requirements and Allocations, Production and Marketing Administration, shall be terminated at the effective time of this delegation to the Director of the Mobilization Activities Branch.

Done at Washington, D. C., this 30th day of September, 1953, to become effective at the close of business on September 30, 1953.

[SEAL] M. B. BRASWELL,
Acting Administrator, Production and Marketing Administration.

[F. R. Doc. 53-8493; Filed, Oct. 2, 1953; 8:47 a. m.]

DEPARTMENT OF THE TREASURY

Internal Revenue Service

[Commissioner's Reorganization Order 25]

DISTRICT DIRECTORS OF INTERNAL REVENUE

DELEGATION OF AUTHORITY TO GRANT EXTENSIONS OF TIME FOR FILING RETURNS AND PAYING CERTAIN EXCISE TAXES

Pursuant to the authority vested in me as Commissioner of Internal Revenue, it is directed:

1. The authority to grant extensions of time to file returns and pay taxes collected with respect to telegram, telephone, radio, and cable facilities, and transportation of persons and property, pursuant to sections 3467 (b), 3469 (e), and 3475 (d) of the Internal Revenue Code, respectively, and to make monthly deposits in payment of such taxes pursuant to Treasury Decision 6025, approved July 3, 1953, is delegated to District Directors of Internal Revenue to be exercised in accordance with applicable regulations and procedures.

2. This order shall be effective this date.

Dated: September 29, 1953.

[SEAL] T. COLEMAN ANDREWS,
Commissioner.

[F. R. Doc. 53-8488; Filed, Oct. 2, 1953; 8:46 a. m.]

CIVIL AERONAUTICS BOARD

[Docket No. 5756 et al.]

STATES-ALASKA CASE

NOTICE OF HEARING

Notice is hereby given, pursuant to the Civil Aeronautics Act of 1938, as amended, that hearing in the above-entitled proceeding is assigned to be held on October 19, 1953, at 10:00 a. m., at the KENI Broadcasting Station, Anchorage, Alaska, before Chief Examiner Francis W. Brown.

Dated at Washington, D. C., September 29, 1953.

[SEAL] FRANCIS W. BROWN,
Chief Examiner.

[F. R. Doc. 53-8478; Filed, Oct. 2, 1953; 8:45 a. m.]

[Docket No. 5818]

PAN AMERICAN WORLD AIRWAYS, INC.; SOUTH ATLANTIC RENEWAL CASE

NOTICE OF PREHEARING CONFERENCE

In the matter of the application of Pan American World Airways, Inc., under section 401 of the Civil Aeronautics Act, as amended, for renewal of its South Africa certificate of public convenience and necessity.

Notice is hereby given that a prehearing conference in the above-entitled proceeding is hereby assigned to be held on October 8, 1953, at 10:00 a. m., e. s. t., in Room 2070, Temporary Building No. 5, Sixteenth and Constitution Avenue NW., Washington, D. C., before Examiner F. Merritt Ruhlen.

Dated at Washington, D. C., September 30, 1953.

[SEAL] FRANCIS W. BROWN,
Chief Examiner.

[F. R. Doc. 53-8491; Filed, Oct. 2, 1953; 8:47 a. m.]

[Docket No. 6346]

AIR SERVICE BETWEEN CHARLESTON, W. VA., AND COLUMBUS, OHIO

NOTICE OF PREHEARING CONFERENCE

In the matter of an investigation of the need for air service between Charleston, W. Va., and Columbus, Ohio.

Notice is hereby given that a prehearing conference in the above-entitled proceeding is hereby assigned to be held on October 12, 1953, at 10:00 a. m., e. s. t., in Room 2070, Temporary Building No. 5, Sixteenth and Constitution Avenue NW., Washington, D. C., before Examiner William J. Madden.

Dated at Washington, D. C., September 30, 1953.

[SEAL] FRANCIS W. BROWN, *Chief Examiner.*

[F. R. Doc. 53-8492; Filed, Oct. 2, 1953; 8:47 a. m.]

FEDERAL POWER COMMISSION

[Docket No. G-2242]

CITY OF VILLA RICA, GA.

NOTICE OF APPLICATION

SEPTEMBER 30, 1953.

Take notice that the City of Villa Rica, Georgia (Applicant), a municipal corporation organized and existing under and by virtue of the laws of the State of Georgia, filed, on September 8, 1953, an application for an order, pursuant to section 7 (a) of the Natural Gas Act, directing Southern Natural Gas Company to establish physical connection of its transportation facilities with proposed facilities of, and to sell natural gas to, the Applicant.

The facilities which Applicant proposes to construct and operate consist of a distribution system within the City of Villa Rica and the adjacent Town of Fullerville and approximately 6.5 miles of 6⅝-inch, O. D., pipe line with appurtenant facilities connecting such system with the transportation facilities of Southern Natural Gas Company. Applicant estimates that its proposed distribution system will have a load requirement of 79,034 Mcf the first year, increasing to 108,833 Mcf the fifth year and 121,905 Mcf in the tenth year. Corresponding estimates for the peak day are 628 Mcf, 900 Mcf and 1,019 Mcf. The estimated total cost of the proposed facilities is $515,000.

Protests or petitions to intervene may be filed with the Federal Power Commission, 441 G Street NW., Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before the 21st day of October 1953. The application is on file with the Commission and open for public inspection.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R Doc. 53-8484; Filed, Oct. 2, 1953; 8:46 a. m.]

FEDERAL COMMUNICATIONS COMMISSION

[Docket No. 10669]

ARROW ELECTRIC CO.

ORDER CONTINUING HEARING

In re application of Arrow Electric Company, West Palm Beach, Florida, Docket No. 10669, File No. 866-C2-P-53; for construction permits in the Domestic Public Land Mobile Radio Service.

The Commission having under consideration a petition filed September 18, 1953, by Arrow Electric Company, requesting continuance to November 3, 1953, of the hearing on the above-entitled application, presently scheduled for October 1, 1953; and

It appearing, that, on September 17, 1953, petitioner filed with the Commission a petition to enlarge issues which is now pending before the Commission; and

It further appearing, that prior commitments of the Hearing Examiner are such that the November 3 date is not feasible; and

It further appearing, that no opposition to the grant of this petition has been filed and, furthermore, the parties, including the Common Carrier Bureau of the Commission, have informally agreed to a continuance of the hearing in this proceeding until the first part of December 1953;

It is ordered, This 25th day of September 1953, that the petition of Arrow Electric Company, requesting continuance of the hearing now scheduled for October 1, 1953, is granted insofar as it requests a continuance of the hearing; and further ordered that the hearing in the above-entitled proceeding is set for December 2, 1953, at 10 o'clock in Washington, D. C.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] DEE W. PINCOCK, *Acting Secretary.*

[F. R. Doc. 53-8480; Filed, Oct. 2, 1953; 8:45 a. m.]

[Docket Nos. 10672, 10673]

PERKINS BROTHERS CO. AND KCOM BROADCASTING CO.

ORDER CONTINUING HEARING

In re applications of Perkins Brothers Company, Sioux City, Iowa, Docket No. 10672, File No. BPCT-688; KCOM Broadcasting Company, Sioux City, Iowa, Docket No. 10673, File No. BPCT-864; for construction permits for new television stations.

The Commission by order dated September 2, 1953, designated the above-entitled applications for competitive hearing in the consolidated proceeding to commence at 10:00 a. m., on October 2, 1953, on specified issues; and

It appearing that the undersigned Examiner before whom these proceedings are to be conducted will be engaged in another proceeding, Docket No. 10151, on October 2, 1953; and

It further appearing that counsel for the applicants and the Commission met with the Examiner on September 24, 1953, at which time the above fact was made known to the parties, that there are no objections to continuance of the commencement of the proceeding from Friday, October 2, 1953, to Monday, October 12, 1953;

It is ordered, This the 25th day of September 1953, that for the reason above-stated, the date for the commencement of the hearing in the above-entitled proceeding is changed from October 2, 1953, to October 12, 1953, beginning at 10:00 a. m., in the offices of the Commission at Washington, D. C.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] DEE W. PINCOCK, *Acting Secretary.*

[F. R. Doc. 53-8481; Filed, Oct. 2, 1953; 8:45 a. m.]

[Docket Nos. 10674, 10675]

GORDON BROADCASTING CO. AND TRI-CITY BROADCASTING CO.

ORDER CONTINUING HEARING

In re applications of Gordon Broadcasting Company, Cincinnati, Ohio, Docket No. 10674, File No. BPCT-1722; Tri-City Broadcasting Company, Newport, Kentucky, Docket No. 10675, File No. BPCT-1737; for construction permits for new television stations.

The Commission having under consideration a motion, filed on September 25, 1953, by Gordon Broadcasting Company, requesting that the hearing scheduled herein for October 2, 1953, be continued until November 16, 1953;

It appearing, that counsel for Tri-City Broadcasting Company and for the Chief of the Commission's Broadcast Bureau have consented to the above continuance and to immediate consideration of the motion;

It is ordered, This 25th day of September 1953, that the motion is granted, and the hearing is continued until November 16, 1953, at 10:00 a. m.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] DEE W. PINCOCK, *Acting Secretary.*

[F. R. Doc. 53-8482; Filed, Oct. 2, 1953; 8:45 a. m.]

[Change List No. 525]

U. S. STANDARD BROADCASTING STATIONS

LIST OF CHANGES, PROPOSED CHANGES, AND CORRECTIONS IN ASSIGNMENTS

SEPTEMBER 23, 1953.

Notification under the provisions of Part III, section 2 of the North American Regional Broadcasting Agreement.

This notification consists of a list of changes, proposed changes, and corrections in Assignments of United States Standard Broadcast Stations modifying the Appendix containing assignments of

United States Standard Broadcast Stations, Mimeograph No. 48126, attached to the "Recommendations of the North American Regional Broadcasting Agreement Engineering Meeting January 30, 1941", as amended.

UNITED STATES

Call letters	Location	Power (kw.)	Antenna	Schedule	Class	Date of FCC Action	Proposed date of change or commencement of operation
		580 kilocycles					
KDAV	Lubbock, Tex.	0.5	DA	D	III		Now in operation with new station.
		630 kilocycles					
KEDM	Edmonds, Wash. (assignment of call letters).						
		730 kilocycles					
(NEW)	Bowling Green, Ohio	0.25	DA	D	II	Sept. 23, 1953	Sept. 23, 1954.
		850 kilocycles					
WKBZ	Muskegon, Mich. (delete increase in daytime power to 5 kw operation to continue with 1 kw, DA-1, U).						
		860 kilocycles					
WMTS	Murfreesboro, Tenn. (assignment of call letters).						
		1050 kilocycles					
(NEW)	Parkersburg, W. V.	0.25	ND	D	II	Sept. 23, 1953	Sept. 23, 1954.
KCOV	Corvallis, Oreg. (assignment of call letters).						
		1150 kilocycles					
KCCT	Corpus Christi, Tex. (assignment of call letters).						
		1230 kilocycles					
WHCO	Sparta, Ill. (assignment of call letters).						
		1240 kilocycles					
WDUN	Gainesville, Ga.	0.25	ND	U	IV		Now in operation with new station
KLUK	Evanston, Wyo. (correction of error in change list No. 521).	0.25	ND	U	IV		
		1250 kilocycles					
KADO	Anadarko, Okla. (assignment of call letters).						
WIZZ	Streator, Ill. (minor modification in directional antenna system).	0.5	DA	D	III	Sept. 23, 1953	Sept. 23, 1954.
		1340 kilocycles					
WGAW	Gardner, Mass. (change in call letters from WHOB).						
		1400 kilocycles					
WDUN	Gainesville, Ga. (delete assignment—vide 1240 kc).						
		1410 kilocycles					
KVLB	Cleveland, Tex. (assignment of call letters).						
		1450 kilocycles					
WRUM	Rumford, Maine	0.25	ND	U	IV		Now in operation with new station.
		1470 kilocycles					
WOHO	Toledo, Ohio (assignment of call letters).						
		1490 kilocycles					
WESK	Escanaba, Mich.	0.25	ND	U	IV		Now in operation with new station.
		1540 kilocycles					
WCLB	Camilla, Ga. (assignment of call letters).						
		1580 kilocycles					
(NEW)	Abbeville, S. C.	1.0	ND	D	II	Sept. 23, 1953	Sept. 23, 1954.

[SEAL]

FEDERAL COMMUNICATIONS COMMISSION,
DEE W. PINCOCK,
Acting Secretary.

[F. R. Doc. 53-8483; Filed, Oct. 2, 1953; 8:46 a. m.]

INTERSTATE COMMERCE COMMISSION

[4th Sec. Application 28511]

CAST IRON PRESSURE PIPE FROM LYNCHBURG, VA., TO CENTRAL AND ILLINOIS TERRITORIES

APPLICATION FOR RELIEF

SEPTEMBER 30, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: C. W. Boin, Agent, for carriers parties to his tariff listed below.

Commodities involved: Cast iron pressure pipe and fittings, carloads.

From: Lynchburg, Va.

To: Points in central and Illinois territories.

Grounds for relief: Competition with rail carriers, circuitous routes.

Schedules filed containing proposed rates: C. W. Boin, Agent, tariff I. C. C. No. A-686, supp. 118.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R Doc. 53-8479; Filed, Oct. 2, 1953; 8:45 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[File No. 70-3121]

WORCESTER GAS LIGHT CO. AND CAMBRIDGE GAS LIGHT CO.

SUPPLEMENTAL ORDER AUTHORIZING SALE OF PRINCIPAL AMOUNT OF FIRST MORTGAGE BONDS

SEPTEMBER 29, 1953.

Worcester Gas Light Company ("Worcester"), a public-utility subsidiary of New England Gas and Electric Association ("Negea"), a registered holding company, having filed an application, and amendments thereto, pursuant to section 6 (b) of the Public Utility Holding Company Act of 1935 and Rule U-50 promulgated thereunder, regarding the issuance and sale, at competitive bidding, of $3,000,000 principal amount of First Mortgage Bonds, ____ percent Series due 1973; and

The Commission, by order dated September 16, 1953, having granted said application, as amended, subject to the condition, among others, that the proposed sale of bonds by Worcester should not be consummated until the results of competitive bidding, pursuant to Rule U-50 had been made a matter of record in this proceeding and a further order entered by this Commission in the light of the record so completed; and jurisdiction having been reserved over the payment of all fees and expenses incurred or to be incurred in connection with the proposed transactions; and

Worcester, on September 29, 1953, having filed a further amendment to its application setting forth the action taken by it to comply with the requirements of Rule U-50 and stating that pursuant to the invitation for competitive bids on the bonds, the following bids were received:

Bidder	Annual interest rate (percent)	Price to company[1] (percent of principal)	Annual cost to company (percent)
Halsey, Stuart & Co., Inc.	4	100.439	3.9680
Blair, Rollins & Co., Inc.	4	100.320	3.9767
Kidder, Peabody & Co. and White, Weld & Co.	4	100.271	3.9802
Coffin & Burr, Inc., and Estabrook & Co.	4¼	100.340	4.0999

[1] Exclusive of accrued interest from Sept. 1, 1953.

The amendment further stating that Worcester has accepted the bid of Halsey, Stuart & Co., Inc. for the bonds, as set forth above, and that the bonds will be initially offered for sale to the public at a price of 101.375 percent of their principal amount, plus accrued interest from September 1, 1953, resulting in an underwriting spread of 0.936 percent of the principal amount of the bonds, or an aggregate of $28,080; and

The record having been completed with respect to the fees and expenses incurred in connection with the proposed transaction which are estimated at $36,511 including counsel fees of $5,000 to W. A. Hill and $1,250 to Ropes, Gray, Best, Coolidge & Rugg, counsel for Worcester, and $4,500 to Palmer Dodge Gardner Bickford & Bradford, counsel for the bidders; and accountants fees of $2,200 to Arthur Andersen & Co. and $1,211 to Patterson, Teele and Dennis; and

The Commission having examined said amendment and having considered the record herein and finding no basis for imposing terms and conditions with respect to the price to be received for the bonds, the redemption prices thereof, the interest rate thereon and the underwriters' spread, or otherwise; and it appearing to the Commission that the estimated fees and expenses (including the proposed fee of Messrs. Palmer Dodge Gardner Bickford & Bradford, which is to be paid by the purchasers of the bonds) are not unreasonable, provided they do not exceed the amounts estimated, and it appearing appropriate to the Commission that the jurisdiction heretofore reserved over the results of competitive bidding and over all fees and expenses, be released:

It is ordered, That said application, as further amended, be, and the same hereby is, granted, effective forthwith, and that the jurisdiction heretofore reserved over the results of competitive bidding, pursuant to Rule U-50, with respect to the sale of the bonds, and over all fees and expenses in connection with the proposed transactions, be, and the same hereby is, released, subject to the terms and conditions prescribed in Rule U-24.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 53-8476; Filed, Oct. 2, 1953; 8:45 a. m.]

AMERICAN NATURAL GAS CO. AND AMERICAN LOUISIANA PIPE LINE CO.

MEMORANDUM OPINION AND ORDER AUTHORIZING ISSUANCE AND SALE BY NON-UTILITY SUBSIDIARY OF SHARES OF ITS COMMON STOCK TO ITS PARENT FOR CASH CONSIDERATION

SEPTEMBER 29, 1953.

American Natural Gas Company ("American Natural"), a registered holding company, and American Louisiana Pipe Line Company ("American Louisiana"), a non-utility subsidiary thereof, have filed, pursuant to sections 6 (a), 7, 9 (a), 10, and 12 (f) of the Public Utility Holding Company Act of 1935 ("act") and Rule U-50 (a) (3) promulgated thereunder a joint application-declaration, as amended, with respect to the following proposed transactions:

American Louisiana, a Delaware corporation, was recently organized to construct and operate a natural gas pipeline system extending from points in Louisiana to Detroit, Michigan. It has an authorized capital stock consisting of three hundred fifty thousand (350,000) shares of the par value of one hundred dollars ($100) each, all of one class.

From time to time as funds are needed by American Louisiana to pay certain preliminary costs and expenses of such pipeline project, and for other corporate purposes, American Louisiana proposes to issue to American Natural for cash at the par value thereof such number of shares of its capital stock (up to but not exceeding 5,000 shares) as may be necessary to provide funds for such purposes; and American Natural proposes to acquire and pay for the shares so issued to it.

Prior to commencement of construction of its proposed pipeline system, it will be necessary for American Louisiana to obtain from the Federal Power Commission under section 7 of the Natural Gas Act a Certificate of Public Convenience and Necessity authorizing the construction and operation of the proposed pipeline system. The funds proposed to be invested by American Natural in American Louisiana pursuant to this application will enable American Louisiana to pay the costs and expenses incurred and to be incurred in obtaining the gas contracts and in preparing, filing and prosecuting an application for such Certificate and in the necessary studies, surveys and other action preparatory thereto.

Fees and expenses relating to the proposed transactions are estimated at $5,500 which include a fee of $2,350 to Sidley, Austin, Burgess & Smith, counsel for American Natural and American Louisiana.

No approval or consent of any regulatory body other than this Commission is necessary for consummation of the transactions now proposed. Applicants-declarants request that the Commission's order herein become effective upon issuance.

Following issuance of a notice of filing regarding the proposals and receipt of requests for a hearing filed by, among others, certain interested state agencies, we ordered that a hearing be held on the application-declaration.

Representatives of the Public Service Commission of Indiana, the Attorney General of Wisconsin, the City of Detroit, Michigan, and of Panhandle Eastern Pipe Line Company appeared at the hearing and participated therein. The City of Milwaukee, Wisconsin, and the Michigan Public Service Commission also entered appearances. None of such participants opposed the proposed transactions and the City of Detroit asked that they be approved.

The American Natural gas utility system includes two gas distribution companies, Michigan Consolidated Gas Company ("Michigan Consolidated") and Milwaukee Gas Light Company ("Milwaukee") and Michigan-Wisconsin Pipeline Company ("Michigan-Wisconsin"), a non-utility gas transmission company which supplies natural gas to Michigan Consolidated and Milwaukee and to fourteen other utility customers.[1]

The proposed transactions are stated to be a part of a program by which American Natural intends to supplement the supply of natural gas presently available to its markets. As indicated above, construction of the projected pipeline will be subject to the jurisdiction of the Federal Power Commission under the certificate provisions of the Natural Gas Act and it is conceded that the overall financing program of the proposed line will require further authorization by this Commission.

On the basis of the record we find that the applicable provisions of the act and the rules promulgated thereunder are satisfied, that no adverse findings are necessary, and that the fees and expenses as estimated are not unreasonable and deeming it appropriate in the public interest and in the interest of investors and consumers that said application-declaration, as amended, be granted and permitted to become effective forthwith without the imposition of terms and conditions, other than those contained in Rule U-24:

It is ordered, Pursuant to the applicable provisions of the act, that said joint applicant-declaration, as amended, be, and it hereby is, granted and permitted to become effective forthwith, subject to the terms and conditions prescribed in Rule U-24.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 53-8477; Filed, Oct. 2, 1953; 8:45 a. m.]

[1] See The United Light and Railways Company, Holding Company Act Release No. 7951 (December 31, 1947).